

FIELD RESOURCE

# Pre-Listing Documents Checklist

---

*Every document to gather before you list, in one printable list*

---

Daniel Gierach

RAY WHITE BULIMBA

0412 523 821

Almost every contract delay in Queensland comes back to a missing document. The vendor either could not find a building approval for a deck added in the 1990s, or the pool safety certificate had lapsed, or the body corporate disclosure had not been ordered. Every one of these is avoidable. Start gathering the documents the day you decide to sell, not the week before settlement. This is the master list.

## Title and ownership

These confirm what you own and what is registered against it. Your conveyancer will pull most of these but having copies on hand speeds everything up.

- ☐ Certificate of title (paper or electronic). If lost, your conveyancer can obtain a fresh copy.
- ☐ Recent title search. Confirms registered owner, mortgage, easements, covenants, caveats.
- ☐ Survey plan if you have one.
- ☐ Copy of the original purchase contract from when you bought the property.
- ☐ Settlement statement from when you bought, useful for capital gains tax calculation later.
- ☐ For property held in trust or company: trust deed, company constitution, or relevant authority.
- ☐ Power of attorney documents if applicable. Must be enduring and registered with QLR.

## Council and rates

These cover all current obligations to council, water, and any state body.

- ☐ Most recent Brisbane City Council (or relevant council) rates notice.
- ☐ Most recent Queensland Urban Utilities (or relevant water authority) notice.
- ☐ Land tax assessment notice if you have one.
- ☐ Body corporate levy notices if applicable (covered separately below).
- ☐ Any council notices, infringements, or outstanding orders against the property.

## Building approvals and permits

This is where most contract delays start. Any structure that required council approval needs the approval documentation. Missing approvals can sometimes be resolved retrospectively but the process takes weeks to months.

- ☐ Original building approval and final inspection certificate for the main dwelling.
- ☐ Building approvals for any additions, renovations, or extensions.
- ☐ Approval for any deck, pergola, carport, or patio that was built later.
- ☐ Approval for any shed over 10 square metres or 2.4 metres in height.
- ☐ Approval for any pool, spa, or related fencing.
- ☐ Approval for any solar panel installation.
- ☐ Approval for any granny flat, secondary dwelling, or auxiliary unit.
- ☐ If approvals are missing: contact a building certifier early to discuss retrospective certification.

## Compliance certificates

Queensland has multiple mandatory compliance certificates. Some must be provided at sale, others must be available on request, and others are sale-critical even when not strictly mandatory.

- ☐ Pool safety certificate (Form 23) if you have a pool, spa, or any water feature over 300mm deep that is fenceable. Or be ready to issue a Form 36 to the buyer.
- ☐ Smoke alarm compliance: interconnected photoelectric alarms in every bedroom and every storey, required by 1 January 2027 for all sales. Get a written compliance report.
- ☐ Gas appliance compliance certificate if you have gas.
- ☐ Solar panel installation compliance and inverter warranty.
- ☐ Hot water system warranty and installation date.
- ☐ Air conditioning warranty if recently installed.
- ☐ NatHERS rating certificate if available.

## Easements, encumbrances, and disclosure

Anything registered against the title that affects what the buyer can do with the property. Disclosure obligations under the Property Law Act 2023 require these be disclosed early.

- ☐ Any easements registered against the title (drainage, sewer, access, electricity).
- ☐ Any restrictive covenants.
- ☐ Any caveat against the title.
- ☐ Any heritage listing or character overlay applying to the property.
- ☐ Flood overlay information from Brisbane City Council FloodWise.
- ☐ Any contamination history of the land.
- ☐ Any current dispute with neighbours over fencing, trees, or boundaries.
- ☐ Mandatory Seller Disclosure Statement (Property Law Act 2023). Your conveyancer prepares this.

## Body corporate (units and townhouses only)

For strata-titled property, the body corporate documentation is one of the buyer's first requests. Order the disclosure statement early because some bodies corporate take weeks to produce it.

- ☐ Body corporate disclosure statement (Form 14 or scheme equivalent).
- ☐ Current by-laws.
- ☐ Most recent levy notice with administrative and sinking fund balances.
- ☐ Sinking fund forecast for at least the next ten years.
- ☐ Minutes of the most recent AGM and any EGMs in the past two years.
- ☐ Insurance schedule for the building.
- ☐ Any pending special levies or major works.
- ☐ Records of any disputes, defects, or significant maintenance.
- ☐ Pet, parking, and renovation by-laws if relevant to the buyer pool.

## Tenancy documents (if leased)

If a tenant occupies the property, gather all tenancy documentation early. Tenancy and sale interact in specific ways under Queensland's Residential Tenancies and Rooming Accommodation Act.

- ☐ Current tenancy agreement.
- ☐ Entry condition report (Form 1).
- ☐ Bond receipt (RTA).
- ☐ Rental ledger showing payment history.
- ☐ Routine inspection reports.
- ☐ Any breach notices issued or received during the tenancy.
- ☐ Property manager authority and agreement if managed.
- ☐ Forms 9, 10, and 12 as required for sale, entry, and notice.
- ☐ Confirmation of whether the tenant has signed an extension or remains on a fixed term.

## Warranties, manuals, and improvements

These do not block sale but they are useful evidence of how the property has been maintained. Buyers ask, and a complete file builds confidence.

- ☐ Warranties for any major appliances installed during your ownership.
- ☐ Warranties for solar panels, hot water systems, water tanks.
- ☐ QBCC home warranty insurance for any building work over \$3,300 done during your ownership.
- ☐ Records of any termite inspections and treatments.
- ☐ Records of any structural work, restumping, or major repairs.
- ☐ Manuals for built-in appliances if available.
- ☐ Service records for air conditioning, pool equipment, irrigation.

## Where to source each document

A quick reference for where to find or request each item.

- ☐ Title search: your conveyancer or QLR titles registry.
- ☐ Building approvals: Brisbane City Council Property Search portal, or apply for a copy from council.
- ☐ Pool safety certificate: a licensed pool safety inspector. Allow up to two weeks for inspection and remedial work.
- ☐ Smoke alarm compliance: a licensed smoke alarm installer (Smoke Alarm Solutions, Smoke Alarms Australia, etc.).
- ☐ Body corporate documents: your body corporate manager. Allow two to three weeks.
- ☐ Rates and water notices: your council and water authority online portal.
- ☐ Land tax: Queensland Revenue Office.
- ☐ Easement and covenant detail: title search.
- ☐ Flood overlay: Brisbane City Council FloodWise property report (free online).

*The vendors who avoid contract delays start gathering documents the week they decide to sell. The vendors who get caught at the eleventh hour started a week before listing. There is no shortcut, and there is no mystery either.*

Daniel Gierach

RAY WHITE BULIMBA

0412 523 821

daniel.gierach@raywhite.com

danielgierach.com